

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-23

SAMSUNG ELECTRONICS

AMERICA, INC.,

COMPLAINANT,

v.

HMM CO., LTD. F/K/A HYUNDAI MERCHANT,

RESPONDENT.

**COMPLAINANT SAMSUNG'S ADDITIONAL STATEMENT OF MATERIAL
FACTS**

Complainant Samsung Electronics America, Inc. ("SEA") respectfully submits this Additional Statement of Material Facts in support of its concurrently filed Opposition to the Motion for Partial Summary Judgment.

1. The available evidence shows that 266 of the containers at issue, carried under 59 bills of lading, were transported aboard a single vessel – the HYUNDAI COLOMBO – which also called at the Port of Los Angeles after calling at the Port of Vancouver on this particular voyage. *Compare* Exhibit 1, B/L No. LCHM06675100 (transporting 1 container from Thailand to Los Angeles with an on board date of July 4, 2021 on voyage number 0119E) *with* Exhibit 2, B/L Nos.: SELM99749200; SELM97959400; SELM94912300; SELM94191400; SELM67681100; LCHM89235402; LCHM89235401; LCHM89235400; LCHM88162214; LCHM88162213;

LCHM88162212; LCHM88162211; LCHM88162210; LCHM88162209; LCHM88162208;
LCHM88162207; LCHM88162206; LCHM88162205; LCHM88162204; LCHM88162203;
LCHM88162202; LCHM88162201; LCHM88162200; LCHM84642100; LCHM84059000;
LCHM83632200; LCHM80745709; LCHM80745708; LCHM80745707; LCHM80745706;
LCHM80745705; LCHM80745704; LCHM80745703; LCHM80745702; LCHM80745701;
LCHM80745700; LCHM70167400; LCHM68744500; LCHM59367400; LCHM56513906;
LCHM56513905; LCHM56513904; LCHM56513903; LCHM56513902; LCHM56513901;
LCHM56513900; LCHM55047100; LCHM47048700; LCHM46266700; LCHM45382200;
LCHM32215904; LCHM32215903; LCHM32215902; LCHM32215901; LCHM32215900;
LCHM24900400; LCHM16531700; LCHM14504900; LCHM13045300 (transporting 266
containers from South Korea and Thailand to Vancouver with onboard dates of July 4 or 13, 2021,
on voyage number 0119E).

2. The available evidence shows that container number BMOU5803732 was transported under bill of lading number SELM39158700 from Busan, Korea, to Chicago, IL, via Vancouver in August 2022, aboard the ATHOS on voyage number 0024E. Exhibit 3, B/L No. SELM39158700. HMM bill of lading number SELM02842000, which is not part of the Subject Shipments, shows that on this same voyage, the ATHOS also called at the Port of Tacoma, WA. *See* Exhibit 4, HMM_059916-18.

3. For the remaining 19 containers transported under 14 bills of lading, the available evidence indicates that they were carried for all or part of their voyage aboard vessels engaged in U.S.-foreign commerce, but because discovery has not yet concluded and HMM is the custodian of the relevant data, additional discovery is necessary to verify the voyage path. *See* Exhibit 5, B/L Nos. BUWB9340992, BUWB9340990, BUWB9340989, BUWB9340988, SELM81362800,

SELM12118400, BUWB9343319, BUWB9346839, BUWB9343314, BUWB9343290, SELM56816500, SELM25213200, SELM12327400, and SELM71764600. In addition, evidence indicates that the discharge of containers at Vancouver rather than at U.S. ports was a consequence of the unprecedented port congestion during the COVID-19 pandemic, and U.S. intermodal cargo that would otherwise have been delivered to U.S. west coast ports was instead discharged in Vancouver as a logistical accommodation for unprecedented circumstances to alleviate backlogs in the U.S. for cargo that remained on U.S.-bound routes.

Respectfully Submitted,

HOLLAND & KNIGHT LLP

By: /s/ Gerald A. Morrissey III

Christopher R. Nolan

Marisa Marinelli

Sean Sheely

Jasmine Sorrentino

Allison Skopec

31 West 52nd Street

New York, NY 10019

Telephone: (212) 513-3200

chris.nolan@hkllaw.com

marisa.marinelli@hkllaw.com

sean.sheely@hkllaw.com

jasmine.sorrentino@hkllaw.com

allison.skopec@hkllaw.com

Gerald A. Morrissey III

Kristine O. Little

Allison J. Luzwick

Ashleigh T. Higgs

800 17th Street N.W., Suite 1100

Washington D.C., 2006

Telephone: (202) 469-5497

gerald.morrissey@hkllaw.com

kristine.little@hkllaw.com

allison.luzwick@hkllaw.com

ashleigh.higgs@hkllaw.com

Counsel to Complainant Samsung Electronics America, Inc.